

David Hume: Readings on Justice, Property, and Sympathy

The Examined Society – Meeting 1 – Primary Text

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Table of contents

Section III. Of Justice	2
Part I	2
Part II	5
Section V. Why Utility Pleases	11
Part I	11
Part II	13
Appendix III. Some Farther Considerations with Regard to Justice	19
Coda: Two Neighbours and a Meadow	23

About this text

The readings below are taken from David Hume, *An Enquiry concerning the Principles of Morals* (first published 1751), Sections III and V and Appendix III, in the text of the 1777 edition, the last Hume revised. The closing passage is from *A Treatise of Human Nature* (1739–1740), Book III, Part II, Section VII. Both follow the edition in Hume Texts Online (davidhume.org), including that edition’s corrections of a few printer’s errors. Spelling and punctuation are Hume’s (hence “encrease”, “cloaths”, “stile”); small capitals mark his emphasis. Footnotes are Hume’s own, including the Greek and Latin quotations; their numbering here is sequential and differs from his.

Each paragraph is marked in grey with its standard reference: M = *Enquiry* (section.paragraph; App3 = Appendix III), T = *Treatise* (book.part.section.paragraph). The paragraph-by-paragraph commentary uses the same references.

Section III. Of Justice

Part I

M 3.1 That Justice is useful to society, and consequently that *part* of its merit, at least, must arise from that consideration, it would be a superfluous undertaking to prove. That public utility is the *sole* origin of justice, and that reflections on the beneficial consequences of this virtue are the *sole* foundation of its merit; this proposition, being more curious and important, will better deserve our examination and enquiry.

M 3.2 Let us suppose, that nature has bestowed on the human race such profuse *abundance* of all *external* conveniencies, that, without any uncertainty in the event, without any care or industry on our part, every individual finds himself fully provided with whatever his most voracious appetites can want, or luxurious imagination wish or desire. His natural beauty, we shall suppose, surpasses all acquired ornaments: The perpetual clemency of the seasons renders useless all cloaths or covering: The raw herbage affords him the most delicious fare; the clear fountain, the richest beverage. No laborious occupation required: No tillage: No navigation. Music, poetry, and contemplation form his sole business: Conversation, mirth, and friendship his sole amusement.

M 3.3 It seems evident, that, in such a happy state, every other social virtue would flourish, and receive tenfold encrease; but the cautious, jealous virtue of justice would never once have been dreamed of. For what purpose make a partition of goods, where every one has already more than enough? Why give rise to property, where there cannot possibly be any injury? Why call this object *mine*, when, upon the seizing of it by another, I need but stretch out my hand to possess myself of what is equally valuable? Justice, in that case, being totally USELESS, would be an idle ceremonial, and could never possibly have place in the catalogue of virtues.

M 3.4 We see, even in the present necessitous condition of mankind, that, wherever any benefit is bestowed by nature in an unlimited abundance, we leave it always in common among the whole human race, and make no subdivisions of right and property. Water and air, though the most necessary of all objects, are not challenged as the property of individuals; nor can any man commit injustice by the most lavish use and enjoyment of these blessings. In fertile extensive countries, with few inhabitants, land is regarded on the same footing. And no topic is so much insisted on by those, who defend the liberty of the seas, as the unexhausted use of them in navigation. Were the advantages, procured by navigation, as inexhaustible, these reasoners had never had any adversaries to refute; nor had any claims ever been advanced of a separate, exclusive dominion over the ocean.

M 3.5 It may happen, in some countries, at some periods, that there be established a property in water, none in land¹; if the latter be in greater abundance than can be used by the inhabitants, and the former be found, with difficulty, and in very small quantities.

M 3.6 Again; suppose, that, though the necessities of human race continue the same as at present, yet the mind is so enlarged, and so replete with friendship and generosity, that every man has the utmost tenderness for every man, and feels no more concern for his own interest than for that of his fellows: It seems evident, that the USE of justice would, in this case, be suspended by such an extensive benevolence, nor would the divisions and barriers of property and obligation have ever been thought of. Why should I bind another, by a deed or promise, to do me any good office, when I know that he is already prompted, by the strongest inclination, to seek my happiness, and would, of himself, perform the desired service; except the hurt, he thereby receives, be greater than the benefit accruing to me? in which case, he knows, that, from my innate humanity and friendship, I should be the first to oppose myself to his imprudent generosity. Why raise land-marks between my neighbour's field and mine, when my heart has made no division between our interests; but shares all his joys and sorrows with the same force and vivacity as if originally my own? Every man, upon this supposition, being a second self to another, would trust all his interests to the discretion of every man; without jealousy, without partition, without distinction. And the whole human race would form only one family; where all would lie in common, and be used freely, without regard to property; but cautiously too, with as entire regard to the necessities of each individual,

¹Genesis, chap. xiii. and xxi.

as if our own interests were most intimately concerned.

M 3.7 In the present disposition of the human heart, it would, perhaps, be difficult to find compleat instances of such enlarged affections; but still we may observe, that the case of families approaches towards it; and the stronger the mutual benevolence is among the individuals, the nearer it approaches; till all distinction of property be, in a great measure, lost and confounded among them. Between married persons, the cement of friendship is by the laws supposed so strong as to abolish all division of possessions; and has often, in reality, the force ascribed to it. And it is observable, that, during the ardour of new enthusiasms, when every principle is inflamed into extravagance, the community of goods has frequently been attempted; and nothing but experience of its inconveniencies, from the returning or disguised selfishness of men, could make the imprudent fanatics adopt anew the ideas of justice and of separate property. So true is it, that this virtue derives its existence entirely from its necessary *use* to the intercourse and social state of mankind.

M 3.8 To make this truth more evident, let us reverse the foregoing suppositions; and carrying every thing to the opposite extreme, consider what would be the effect of these new situations. Suppose a society to fall into such want of all common necessities, that the utmost frugality and industry cannot preserve the greater number from perishing, and the whole from extreme misery: It will readily, I believe, be admitted, that the strict laws of justice are suspended, in such a pressing emergence, and give place to the stronger motives of necessity and self-preservation. Is it any crime, after a shipwreck, to seize whatever means or instrument of safety one can lay hold of, without regard to former limitations of property? Or if a city besieged were perishing with hunger; can we imagine, that men will see any means of preservation before them, and lose their lives, from a scrupulous regard to what, in other situations, would be the rules of equity and justice? The *USE* and *TENDENCY* of that virtue is to procure happiness and security, by preserving order in society: But where the society is ready to perish from extreme necessity, no greater evil can be dreaded from violence and injustice; and every man may now provide for himself by all the means, which prudence can dictate, or humanity permit. The public, even in less urgent necessities, opens granaries, without the consent of proprietors; as justly supposing, that the authority of magistracy may, consistent with equity, extend so far: But were any number of men to assemble, without the tye of laws or civil jurisdiction; would an equal partition of bread in a famine, though effected by power and even violence, be regarded as criminal or injurious?

M 3.9 Suppose likewise, that it should be a virtuous man's fate to fall into the society of ruffians, remote from the protection of laws and government; what conduct must he embrace in that melancholy situation? He sees such a desperate rapaciousness prevail; such a disregard to equity, such contempt of order, such stupid blindness to future consequences, as must immediately have the most tragical conclusion, and must terminate in destruction to the greater number, and in a total dissolution of society to the rest. He, mean while, can have no other expedient than to arm himself, to whomever the sword he seizes, or the buckler, may belong: To make provision of all means of defence and security: And his particular regard to justice being no longer of *USE* to his own safety or that of others, he must consult the dictates of self-preservation alone, without concern for those who no longer merit his care and attention.

M 3.10 When any man, even in political society, renders himself, by his crimes, obnoxious to the public, he is punished by the laws in his goods and person; that is, the ordinary rules of justice are, with regard to him, suspended for a moment, and it becomes equitable to inflict on him, for the *benefit* of society, what, otherwise, he could not suffer without wrong or injury.

M 3.11 The rage and violence of public war; what is it but a suspension of justice among the warring parties, who perceive, that this virtue is now no longer of any *use* or advantage to them? The laws of war, which then succeed to those of equity and justice, are rules calculated for the *advantage* and *utility* of that particular state, in which men are now placed. And were a civilized nation engaged with barbarians, who observed no rules even of war; the former must also suspend their observance of them, where they no longer serve to any purpose; and must render every action or rencounter as bloody and pernicious as possible to the first aggressors.

M 3.12 Thus, the rules of equity or justice depend entirely on the particular state and condition, in which men are placed, and owe their origin and existence to that *UTILITY*, which results to the public from

their strict and regular observance. Reverse, in any considerable circumstance, the condition of men: Produce extreme abundance or extreme necessity: Implant in the human breast perfect moderation and humanity, or perfect rapaciousness and malice: By rendering justice totally *useless*, you thereby totally destroy its essence, and suspend its obligation upon mankind.

M 3.13 The common situation of society is a medium amidst all these extremes. We are naturally partial to ourselves, and to our friends; but are capable of learning the advantage resulting from a more equitable conduct. Few enjoyments are given us from the open and liberal hand of nature; but by art, labour, and industry, we can extract them in great abundance. Hence the ideas of property become necessary in all civil society: Hence justice derives its usefulness to the public: And hence alone arises its merit and moral obligation.

M 3.14 These conclusions are so natural and obvious, that they have not escaped even the poets, in their descriptions of the felicity, attending the golden age or the reign of Saturn. The seasons, in that first period of nature, were so temperate, if we credit these agreeable fictions, that there was no necessity for men to provide themselves with cloaths and houses, as a security against the violence of heat and cold: The rivers flowed with wine and milk: The oaks yielded honey; and nature spontaneously produced her greatest delicacies. Nor were these the chief advantages of that happy age. Tempests were not alone removed from nature; but those more furious tempests were unknown to human breasts, which now cause such uproar, and engender such confusion. Avarice, ambition, cruelty, selfishness, were never heard of: Cordial affection, compassion, sympathy, were the only movements with which the mind was yet acquainted. Even the punctilious distinction of *mine* and *thine* was banished from among that happy race of mortals, and carried with it the very notion of property and obligation, justice and injustice.

M 3.15 This *poetical* fiction of the *golden age* is, in some respects, of a piece with the *philosophical* fiction of the *state of nature*; only that the former is represented as the most charming and most peaceable condition, which can possibly be imagined; whereas the latter is painted out as a state of mutual war and violence, attended with the most extreme necessity. On the first origin of mankind, we are told, their ignorance and savage nature were so prevalent, that they could give no mutual trust, but must each depend upon himself, and his own force or cunning for protection and security. No law was heard of: No rule of justice known: No distinction of property regarded: Power was the only measure of right; and a perpetual war of all against all was the result of men's untamed selfishness and barbarity².

M 3.16 Whether such a condition of human nature could ever exist, or if it did, could continue so long as to merit the appellation of a *state*, may justly be doubted. Men are necessarily born in a family-society, at least; and are trained up by their parents to some rule of conduct and behaviour. But this must be admitted, that, if such a state of mutual war and violence was ever real, the suspension of all laws of justice, from their absolute inutility, is a necessary and infallible consequence.

M 3.17 The more we vary our views of human life, and the newer and more unusual the lights are, in which we survey it, the more shall we be convinced, that the origin here assigned for the virtue of justice is real and satisfactory.

M 3.18 Were there a species of creatures, intermingled with men, which, though rational, were possessed of such inferior strength, both of body and mind, that they were incapable of all resistance, and could never, upon the highest provocation, make us feel the effects of their resentment; the necessary consequence, I think, is, that we should be bound, by the laws of humanity, to give gentle usage to these creatures,

²This fiction of a state of nature, as a state of war, was not first started by Mr. Hobbes, as is commonly imagined. Plato endeavours to refute an hypothesis very like it in the 2d, 3d, and 4th books de republica. Cicero, on the contrary, supposes it certain and universally acknowledged in the following passage. "Quis enim vestrum, iudices, ignorat, ita naturam rerum tulisse, ut quodam tempore homines, nondum neque naturali, neque civili jure descripto, fusi per agros, ac dispersi vagarentur tantumque haberent quantum manu ac viribus, per cædem ac vulnera, aut eripere, aut retinere potuissent? Qui igitur primi virtute & consilio præstanti extiterunt, ii perspecto genere humanæ docilitatis atque ingenii, dissipatos unum in locum congregarunt, eosque ex feritate illa ad justitiam ac mansuetudinem transduxerunt. Tum res ad communem utilitatem, quas publicas appellamus, tum conventicula hominum, quæ postea civitates nominatæ sunt, tum domicilia conjuncta, quas urbes dicamus, invento & divino & humano jure, mœnibus sepserunt. Atque inter hanc vitam, perpolitam humanitate, & illam immanem, nihil tam interest quam JUS atque VIS. Horum utro uti nolimus, altero est utendum. Vim volumus extinguere? Jus valeat necesse est, idi est, judicia, quibus omne jus continetur. Judicia displicent, aut nulla, sunt? Vis dominetur necesse est? Hæc vident omnes." *Pro Sext.* l. 42.

but should not, properly speaking, lie under any restraint of justice with regard to them, nor could they possess any right or property, exclusive of such arbitrary lords. Our intercourse with them could not be called society, which supposes a degree of equality; but absolute command on the one side, and servile obedience on the other. Whatever we covet, they must instantly resign: Our permission is the only tenure, by which they hold their possessions: Our compassion and kindness the only check, by which they curb our lawless will: And as no inconvenience ever results from the exercise of a power, so firmly established in nature, the restraints of justice and property, being totally *useless*, would never have place in so unequal a confederacy.

M 3.19 This is plainly the situation of men, with regard to animals; and how far these may be said to possess reason, I leave it to others to determine. The great superiority of civilized Europeans above barbarous Indians, tempted us to imagine ourselves on the same footing with regard to them, and made us throw off all restraints of justice, and even of humanity, in our treatment of them. In many nations, the female sex are reduced to like slavery, and are rendered incapable of all property, in opposition to their lordly masters. But though the males, when united, have, in all countries, bodily force sufficient to maintain this severe tyranny; yet such are the insinuation, address, and charms of their fair companions, that women are commonly able to break the confederacy, and share with the other sex in all the rights and privileges of society.

M 3.20 Were the human species so framed by nature as that each individual possessed within himself every faculty, requisite both for his own preservation and for the propagation of his kind: Were all society and intercourse cut off between man and man, by the primary intention of the supreme Creator: It seems evident, that so solitary a being would be as much incapable of justice, as of social discourse and conversation. Where mutual regards and forbearance serve to no manner of purpose, they would never direct the conduct of any reasonable man. The headlong course of the passions would be checked by no reflection on future consequences. And as each man is here supposed to love himself alone, and to depend only on himself and his own activity for safety and happiness, he would, on every occasion, to the utmost of his power, challenge the preference above every other being, to none of which he is bound by any ties, either of nature or of interest.

M 3.21 But suppose the conjunction of the sexes to be established in nature, a family immediately arises; and particular rules being found requisite for its subsistence, these are immediately embraced; though without comprehending the rest of mankind within their prescriptions. Suppose, that several families unite together into one society, which is totally disjoined from all others, the rules, which preserve peace and order, enlarge themselves to the utmost extent of that society; but becoming then entirely useless, lose their force when carried one step farther. But again suppose, that several distinct societies maintain a kind of intercourse for mutual convenience and advantage, the boundaries of justice still grow larger, in proportion to the largeness of men's views, and the force of their mutual connexions. History, experience, reason sufficiently instruct us in this natural progress of human sentiments, and in the gradual enlargement of our regards to justice, in proportion as we become acquainted with the extensive utility of that virtue.

Part II

M 3.22 If we examine the *particular* laws, by which justice is directed, and property determined; we shall still be presented with the same conclusion. The good of mankind is the only object of all these laws and regulations. Not only it is requisite, for the peace and interest of society, that men's possessions should be separated; but the rules, which we follow, in making the separation, are such as can best be contrived to serve farther the interests of society.

M 3.23 We shall suppose, that a creature, possessed of reason, but unacquainted with human nature, deliberates with himself what RULES of justice or property would best promote public interest, and establish peace and security among mankind: His most obvious thought would be, to assign the largest possessions to the most extensive virtue, and give every one the power of doing good, proportioned to his inclination. In a perfect theocracy, where a being, infinitely intelligent, governs by particular volitions, this rule would certainly have place, and might serve to the wisest purposes: But were mankind to execute such a law; so great is the uncertainty of merit, both from its natural obscurity, and from the

self-conceit of each individual, that no determinate rule of conduct would ever result from it; and the total dissolution of society must be the immediate consequence. Fanatics may suppose, *that dominion is founded on grace*, and *that saints alone inherit the earth*; but the civil magistrate very justly puts these sublime theorists on the same footing with common robbers, and teaches them by the severest discipline, that a rule, which, in speculation, may seem the most advantageous to society, may yet be found, in practice, totally pernicious and destructive.

M 3.24 That there were *religious* fanatics of this kind in England, during the civil wars, we learn from history; though it is probable, that the obvious *tendency* of these principles excited such horror in mankind, as soon obliged the dangerous enthusiasts to renounce, or at least conceal their tenets. Perhaps, the *levellers*, who claimed an equal distribution of property, were a kind of *political* fanatics, which arose from the religious species, and more openly avowed their pretensions; as carrying a more plausible appearance, of being practicable in themselves, as well as useful to human society.

M 3.25 It must, indeed, be confessed, that nature is so liberal to mankind, that, were all her presents equally divided among the species, and improved by art and industry, every individual would enjoy all the necessities, and even most of the comforts of life; nor would ever be liable to any ills, but such as might accidentally arise from the sickly frame and constitution of his body. It must also be confessed, that, wherever we depart from this equality, we rob the poor of more satisfaction than we add to the rich, and that the slight gratification of a frivolous vanity, in one individual, frequently costs more than bread to many families, and even provinces. It may appear withal, that the rule of equality, as it would be highly *useful*, is not altogether *impracticable*; but has taken place, at least in an imperfect degree, in some republics; particularly that of Sparta; where it was attended, it is said, with the most beneficial consequences. Not to mention, that the Agrarian laws, so frequently claimed in Rome, and carried into execution in many Greek cities, proceeded, all of them, from a general idea of the utility of this principle.

M 3.26 But historians, and even common sense, may inform us, that, however specious these ideas of *perfect* equality may seem, they are really, at bottom, *impracticable*; and were they not so, would be extremely *pernicious* to human society. Render possessions ever so equal, men's different degrees of art, care, and industry will immediately break that equality. Or if you check these virtues, you reduce society to the most extreme indigence; and instead of preventing want and beggary in a few, render it unavoidable to the whole community. The most rigorous inquisition too is requisite to watch every inequality on its first appearance; and the most severe jurisdiction, to punish and redress it. But besides, that so much authority must soon degenerate into tyranny, and be exerted with great partialities; who can possibly be possessed of it, in such a situation as is here supposed? Perfect equality of possessions, destroying all subordination, weakens extremely the authority of magistracy, and must reduce all power nearly to a level, as well as property.

M 3.27 We may conclude, therefore, that, in order to establish laws for the regulation of property, we must be acquainted with the nature and situation of man; must reject appearances, which may be false, though specious; and must search for those rules, which are, on the whole, most *useful* and *beneficial*. Vulgar sense and slight experience are sufficient for this purpose; where men give not way to too selfish avidity, or too extensive enthusiasm.

M 3.28 Who sees not, for instance, that whatever is produced or improved by a man's art or industry ought, for ever, to be secured to him, in order to give encouragement to such *useful* habits and accomplishments? That the property ought also to descend to children and relations, for the same *useful* purpose? That it may be alienated by consent, in order to beget that commerce and intercourse, which is so *beneficial* to human society? And that all contracts and promises ought carefully to be fulfilled, in order to secure mutual trust and confidence, by which the general *interest* of mankind is so much promoted?

M 3.29 Examine the writers on the laws of nature; and you will always find, that, whatever principles they set out with, they are sure to terminate here at last, and to assign, as the ultimate reason for every rule which they establish, the convenience and necessities of mankind. A concession thus extorted, in opposition to systems, has more authority, than if it had been made in prosecution of them.

M 3.30 What other reason, indeed, could writers ever give, why this must be *mine* and that *yours*; since uninstructed nature, surely, never made any such distinction? The objects, which receive those

appellations, are, of themselves, foreign to us; they are totally disjoined and separated from us; and nothing but the general interests of society can form the connexion.

M 3.31 Sometimes, the interests of society may require a rule of justice in a particular case; but may not determine any particular rule, among several, which are all equally beneficial. In that case, the slightest *analogies* are laid hold of, in order to prevent that indifference and ambiguity, which would be the source of perpetual dissention. Thus possession alone, and first possession, is supposed to convey property, where no body else has any preceding claim and pretension. Many of the reasonings of lawyers are of this analogical nature, and depend on very slight connexions of the imagination.

M 3.32 Does any one scruple, in extraordinary cases, to violate all regard to the private property of individuals, and sacrifice to public interest a distinction, which had been established for the sake of that interest? The safety of the people is the supreme law: All other particular laws are subordinate to it, and dependant on it: And if, in the *common* course of things, they be followed and regarded; it is only because the public safety and interest *commonly* demand so equal and impartial an administration.

M 3.33 Sometimes both *utility* and *analogy* fail, and leave the laws of justice in total uncertainty. Thus, it is highly requisite, that prescription or long possession should convey property; but what number of days or months or years should be sufficient for that purpose, it is impossible for reason alone to determine. *Civil laws* here supply the place of the natural *code*, and assign different terms for prescription, according to the different *utilities*, proposed by the legislator. Bills of exchange and promissory notes, by the laws of most countries, prescribe sooner than bonds, and mortgages, and contracts of a more formal nature.

M 3.34 In general, we may observe, that all questions of property are subordinate to the authority of civil laws, which extend, restrain, modify, and alter the rules of natural justice, according to the particular *convenience* of each community. The laws have, or ought to have, a constant reference to the constitution of government, the manners, the climate, the religion, the commerce, the situation of each society. A late author of genius, as well as learning, has prosecuted this subject at large, and has established, from these principles, a system of political knowledge, which abounds in ingenious and brilliant thoughts, and is not wanting in solidity³.

M 3.35 *What is a man's property?* Any thing, which it is lawful for him, and for him alone, to use. *But what rule have we, by which we can distinguish these objects?* Here we must have recourse to statutes, customs, precedents, analogies, and a hundred other circumstances; some of which are constant and inflexible, some variable and arbitrary. But the ultimate point, in which they all professedly terminate, is, the interest and happiness of human society. Where this enters not into consideration, nothing can appear more whimsical, unnatural, and even superstitious, than all or most of the laws of justice and of property.

M 3.36 Those, who ridicule vulgar superstitions, and expose the folly of particular regards to meats, days, places, postures, apparel, have an easy task; while they consider all the qualities and relations of the

³The author of *L'Esprit des Loix*. This illustrious writer, however, sets out with a different theory, and supposes all right to be founded on certain *rapports* or relations; which is a system, that, in my opinion, never will be reconciled with true philosophy. Father Malebranche, as far as I can learn, was the first that started this abstract theory of morals, which was afterwards adopted by Cudworth, Clarke, and others; and as it excludes all sentiment, and pretends to found every thing on reason, it has not wanted followers in this philosophic age. See Section I. Appendix I. With regard to justice, the virtue here treated of, the inference against this theory seems short and conclusive. Property is allowed to be dependent on civil laws; civil laws are allowed to have no other object, but the interest of society: This therefore must be allowed to be the sole foundation of property and justice. Not to mention, that our obligation itself to obey the magistrate and his laws is founded on nothing but the interests of society.

If the ideas of justice, sometimes, do not follow the dispositions of civil law; we shall find, that these cases, instead of objections, are confirmations of the theory delivered above. Where a civil law is so perverse as to cross all the interests of society, it loses all its authority, and men judge by the ideas of natural justice, which are conformable to those interests. Sometimes also civil laws, for useful purposes, require a ceremony or form to any deed; and where that is wanting, their decrees run contrary to the usual tenour of justice; but one who takes advantage of such chicanes, is not commonly regarded as an honest man. Thus, the interests of society require, that contracts be fulfilled; and there is not a more material article either of natural or civil justice: But the omission of a trifling circumstance will often, by law, invalidate a contract, *in foro humano*, but not *in foro conscientiae*, as divines express themselves. In these cases, the magistrate is supposed only to withdraw his power of enforcing the right, not to have altered the right. Where his intention extends to the right, and is conformable to the interests of society; it never fails to alter the right; a clear proof of the origin of justice and of property, as assigned above.

objects, and discover no adequate cause for that affection or antipathy, veneration or horror, which have so mighty an influence over a considerable part of mankind. A Syrian would have starved rather than taste pigeon; an Egyptian would not have approached bacon: But if these species of food be examined by the senses of sight, smell, or taste, or scrutinized by the sciences of chymistry, medicine, or physics; no difference is ever found between them and any other species, nor can that precise circumstance be pitched on, which may afford a just foundation for the religious passion. A fowl on Thursday is lawful food; on Friday abominable: Eggs, in this house, and in this diocese, are permitted during Lent; a hundred paces farther, to eat them is a damnable sin. This earth or building, yesterday was profane; to-day, by the muttering of certain words, it has become holy and sacred. Such reflections as these, in the mouth of a philosopher, one may safely say, are too obvious to have any influence; because they must always, to every man, occur at first sight; and where they prevail not, of themselves, they are surely obstructed by education, prejudice, and passion, not by ignorance or mistake.

M 3.37 It may appear to a careless view, or rather a too abstracted reflection, that there enters a like superstition into all the sentiments of justice; and that, if a man expose its object, or what we call property, to the same scrutiny of sense and science, he will not, by the most accurate enquiry, find any foundation for the difference made by moral sentiment. I may lawfully nourish myself from this tree; but the fruit of another of the same species, ten paces off, it is criminal for me to touch. Had I worn this apparel an hour ago, I had merited the severest punishment; but a man, by pronouncing a few magical syllables, has now rendered it fit for my use and service. Were this house placed in the neighbouring territory, it had been immoral for me to dwell in it; but being built on this side the river, it is subject to a different municipal law, and, by its becoming mine, I incur no blame or censure. The same species of reasoning, it may be thought, which so successfully exposes superstition, is also applicable to justice; nor is it possible, in the one case more than in the other, to point out, in the object, that precise quality or circumstance, which is the foundation of the sentiment.

M 3.38 But there is this material difference between *superstition* and *justice*, that the former is frivolous, useless, and burdensome; the latter is absolutely requisite to the well-being of mankind and existence of society. When we abstract from this circumstance (for it is too apparent ever to be overlooked) it must be confessed, that all regards to right and property, seem entirely without foundation, as much as the grossest and most vulgar superstition. Were the interests of society nowise concerned, it is as unintelligible, why another's articulating certain sounds implying consent, should change the nature of my actions with regard to a particular object, as why the reciting of a liturgy by a priest, in a certain habit and posture, should dedicate a heap of brick and timber, and render it, thenceforth and for ever, sacred⁴.

⁴It is evident, that the will or consent alone never transfers property, nor causes the obligation of a promise (for the same reasoning extends to both) but the will must be expressed by words or signs, in order to impose a tie upon any man. The expression being once brought in as subservient to the will, soon becomes the principal part of the promise; nor will a man be less bound by his word, though he secretly give a different direction to his intention, and withhold the assent of his mind. But though the expression makes, on most occasions, the whole of the promise, yet it does not always so; and one who should make use of any expression, of which he knows not the meaning, and which he uses without any sense of the consequences, would not certainly be bound by it. Nay, though he know its meaning, yet if he use it in jest only, and with such signs as evidently show, that he has no serious intention of binding himself, he would not lie under any obligation of performance; but it is necessary, that the words be a perfect expression of the will, without any contrary signs. Nay, even this we must not carry so far as to imagine, that one, whom, by our quickness of understanding, we conjecture, from certain signs, to have an intention of deceiving us, is not bound by his expression or verbal promise, if we accept of it; but must limit this conclusion to those cases where the signs are of a different nature from those of deceit. All these contradictions are easily accounted for, if justice arise entirely from its usefulness to society; but will never be explained on any other hypothesis.

It is remarkable that the moral decisions of the *Jesuits* and other relaxed casuists, were commonly formed in prosecution of some such subtleties of reasoning as are here pointed out, and proceed as much from the habit of scholastic refinement as from any corruption of the heart, if we may follow the authority of Mons. Bayle. See his Dictionary, article Loyola. And why has the indignation of mankind risen so high against these casuists; but because every one perceived, that human society could not subsist were such practices authorized, and that morals must always be handled with a view to public interest, more than philosophical regularity? If the secret direction of the intention, said every man of sense, could invalidate a contract; where is our security? And yet a metaphysical schoolman might think, that, where an intention was supposed to be requisite, if that intention really had not place, no consequence ought to follow, and no obligation be imposed. The casuistical subtleties may not be greater than the subtleties of lawyers, hinted at above; but as the former are *pernicious*, and the latter *innocent* and even *necessary*, this is the reason of the very different reception they meet with from the world.

It is a doctrine of the Church of Rome, that the priest, by a secret direction of his intention, can invalidate any sacrament.

M 3.39 These reflections are far from weakening the obligations of justice, or diminishing any thing from the most sacred attention to property. On the contrary, such sentiments must acquire new force from the present reasoning. For what stronger foundation can be desired or conceived for any duty, than to observe, that human society, or even human nature could not subsist, without the establishment of it; and will still arrive at greater degrees of happiness and perfection, the more inviolable the regard is, which is paid to that duty?

M 3.40 The dilemma seems obvious: As justice evidently tends to promote public utility and to support civil society, the sentiment of justice is either derived from our reflecting on that tendency, or like hunger, thirst, and other appetites, resentment, love of life, attachment to offspring, and other passions, arises from a simple original instinct in the human breast, which nature has implanted for like salutary purposes. If the latter be the case, it follows, that property, which is the object of justice, is also distinguished by a simple, original instinct, and is not ascertained by any argument or reflection. But who is there that ever heard of such an instinct? Or is this a subject, in which new discoveries can be made? We may as well expect to discover, in the body, new senses, which had before escaped the observation of all mankind.

M 3.41 But farther, though it seems a very simple proposition to say, that nature, by an instinctive sentiment, distinguishes property, yet in reality we shall find, that there are required for that purpose ten thousand different instincts, and these employed about objects of the greatest intricacy and nicest discernment. For when a definition of *property* is required, that relation is found to resolve itself into any possession acquired by occupation, by industry, by prescription, by inheritance, by contract, &c. Can we think, that nature, by an original instinct, instructs us in all these methods of acquisition?

M 3.42 These words too, inheritance and contract, stand for ideas infinitely complicated; and to define them exactly, a hundred volumes of laws, and a thousand volumes of commentators, have not been found sufficient. Does nature, whose instincts in men are all simple, embrace such complicated and artificial objects, and create a rational creature, without trusting any thing to the operation of his reason?

M 3.43 But even though all this were admitted, it would not be satisfactory. Positive laws can certainly transfer property. Is it by another original instinct, that we recognize the authority of kings and senates, and mark all the boundaries of their jurisdiction? Judges too, even though their sentence be erroneous and illegal, must be allowed, for the sake of peace and order, to have decisive authority, and ultimately to determine property. Have we original, innate ideas of prætors and chancellors and juries? Who sees not, that all these institutions arise merely from the necessities of human society?

M 3.44 All birds of the same species in every age and country, build their nests alike: In this we see the force of instinct. Men, in different times and places, frame their houses differently: Here we perceive the influence of reason and custom. A like inference may be drawn from comparing the instinct of generation and the institution of property.

M 3.45 How great soever the variety of municipal laws, it must be confessed, that their chief out-lines pretty regularly concur; because the purposes, to which they tend, are every where exactly similar. In like manner, all houses have a roof and walls, windows and chimneys; though diversified in their shape, figure, and materials. The purposes of the latter, directed to the conveniencies of human life, discover not more plainly their origin from reason and reflection, than do those of the former, which point all to a like end.

M 3.46 I need not mention the variations, which all the rules of property receive from the finer turns and connexions of the imagination, and from the subtilties and abstractions of law-topics and reasonings. There is no possibility of reconciling this observation to the notion of original instincts.

M 3.47 What alone will beget a doubt concerning the theory, on which I insist, is the influence of education

This position is derived from a strict and regular prosecution of the obvious truth, that empty words alone, without any meaning or intention in the speaker, can never be attended with any effect. If the same conclusion be not admitted in reasonings concerning civil contracts, where the affair is allowed to be of so much less consequence than the eternal salvation of thousands, it proceeds entirely from men's sense of the danger and inconvenience of the doctrine in the former case: And we may thence observe, that however positive, arrogant, and dogmatical any superstition may appear, it never can convey any thorough persuasion of the reality of its objects, or put them, in any degree, on a balance with the common incidents of life, which we learn from daily observation and experimental reasoning.

and acquired habits, by which we are so accustomed to blame injustice, that we are not, in every instance, conscious of any immediate reflection on the pernicious consequences of it. The views the most familiar to us are apt, for that very reason, to escape us; and what we have very frequently performed from certain motives, we are apt likewise to continue mechanically, without recalling, on every occasion, the reflections, which first determined us. The convenience, or rather necessity, which leads to justice, is so universal, and every where points so much to the same rules, that the habit takes place in all societies; and it is not without some scrutiny, that we are able to ascertain its true origin. The matter, however, is not so obscure, but that, even in common life, we have, every moment, recourse to the principle of public utility, and ask, *What must become of the world, if such practices prevail? How could society subsist under such disorders?* Were the distinction or separation of possessions entirely useless, can any one conceive, that it ever should have obtained in society?

M 3.48 Thus we seem, upon the whole, to have attained a knowledge of the force of that principle here insisted on, and can determine what degree of esteem or moral approbation may result from reflections on public interest and utility. The necessity of justice to the support of society is the SOLE foundation of that virtue; and since no moral excellence is more highly esteemed, we may conclude, that this circumstance of usefulness has, in general, the strongest energy, and most entire command over our sentiments. It must, therefore, be the source of a considerable part of the merit ascribed to humanity, benevolence, friendship, public spirit, and other social virtues of that stamp; as it is the SOLE source of the moral approbation paid to fidelity, justice, veracity, integrity, and those other estimable and useful qualities and principles. It is entirely agreeable to the rules of philosophy, and even of common reason; where any principle has been found to have a great force and energy in one instance, to ascribe to it a like energy in all similar instances. This indeed is Newton's chief rule of philosophizing⁵.

⁵Principia, lib. iii.

Section V. Why Utility Pleases

Part I

M 5.1 It seems so natural a thought to ascribe to their utility the praise, which we bestow on the social virtues, that one would expect to meet with this principle every where in moral writers, as the chief foundation of their reasoning and enquiry. In common life, we may observe, that the circumstance of utility is always appealed to; nor is it supposed, that a greater eulogy can be given to any man, than to display his usefulness to the public, and enumerate the services, which he has performed to mankind and society. What praise, even of an inanimate form, if the regularity and elegance of its parts destroy not its fitness for any useful purpose! And how satisfactory an apology for any disproportion or seeming deformity, if we can show the necessity of that particular construction for the use intended! A ship appears more beautiful to an artist, or one moderately skilled in navigation, where its prow is wide and swelling beyond its poop, than if it were framed with a precise geometrical regularity, in contradiction to all the laws of mechanics. A building, whose doors and windows were exact squares, would hurt the eye by that very proportion; as ill adapted to the figure of a human creature, for whose service the fabric was intended. What wonder then, that a man, whose habits and conduct are hurtful to society, and dangerous or pernicious to every one who has an intercourse with him, should, on that account, be an object of disapprobation, and communicate to every spectator the strongest sentiment of disgust and hatred⁶.

M 5.2 But perhaps the difficulty of accounting for these effects of usefulness, or its contrary, has kept philosophers from admitting them into their systems of ethics, and has induced them rather to employ any other principle, in explaining the origin of moral good and evil. But it is no just reason for rejecting any principle, confirmed by experience, that we cannot give a satisfactory account of its origin, nor are able to resolve it into other more general principles. And if we would employ a little thought on the present subject, we need be at no loss to account for the influence of utility, and to deduce it from principles, the most known and avowed in human nature.

M 5.3 From the apparent usefulness of the social virtues, it has readily been inferred by sceptics, both ancient and modern, that all moral distinctions arise from education, and were, at first, invented, and afterwards encouraged, by the art of politicians, in order to render men tractable, and subdue their natural ferocity and selfishness, which incapacitated them for society. This principle, indeed, of precept and education, must so far be owned to have a powerful influence, that it may frequently encrease or diminish, beyond their natural standard, the sentiments of approbation or dislike; and may even, in particular instances, create, without any natural principle, a new sentiment of this kind; as is evident in all superstitious practices and observances: But that *all* moral affection or dislike arises from this origin, will never surely be allowed by any judicious enquirer. Had nature made no such distinction, founded on the original constitution of the mind, the words, *honourable* and *shameful*, *lovely* and *odious*, *noble* and *despicable*, had never had place in any language; nor could politicians, had they invented these terms, ever have been able to render them intelligible, or make them convey any idea to the audience. So that nothing can be more superficial than this paradox of the sceptics; and it were well, if, in the abstruser studies of logic and metaphysics, we could as easily obviate the cavils of that sect, as in the practical and more intelligible sciences of politics and morals.

⁶We ought not to imagine, because an inanimate object may be useful as well as a man, that therefore it ought also, according to this system, to merit the appellation of *virtuous*. The sentiments, excited by utility, are, in the two cases, very different; and the one is mixed with affection, esteem, approbation, &c. and not the other. In like manner, an inanimate object may have good colour and proportions as well as a human figure. But can we ever be in love with the former? There are a numerous set of passions and sentiments, of which thinking rational beings are, by the original constitution of nature, the only proper objects: And though the very same qualities be transferred to an insensible, inanimate being, they will not excite the same sentiments. The beneficial qualities of herbs and minerals are, indeed, sometimes called their *virtues*; but this is an effect of the caprice of language, which ought not to be regarded in reasoning. For though there be a species of approbation attending even inanimate objects, when beneficial, yet this sentiment is so weak, and so different from that which is directed to beneficent magistrates or statesmen; that they ought not to be ranked under the same class or appellation.

A very small variation of the object, even where the same qualities are preserved, will destroy a sentiment. Thus, the same beauty, transferred to a different sex, excites no amorous passion, where nature is not extremely perverted.

M 5.4 The social virtues must, therefore, be allowed to have a natural beauty and amiableness, which, at first, antecedent to all precept or education, recommends them to the esteem of uninstructed mankind, and engages their affections. And as the public utility of these virtues is the chief circumstance, whence they derive their merit, it follows, that the end, which they have a tendency to promote, must be some way agreeable to us, and take hold of some natural affection. It must please, either from considerations of self-interest, or from more generous motives and regards.

M 5.5 It has often been asserted, that, as every man has a strong connexion with society, and perceives the impossibility of his solitary subsistence, he becomes, on that account, favourable to all those habits or principles, which promote order in society, and insure to him the quiet possession of so inestimable a blessing. As much as we value our own happiness and welfare, as much must we applaud the practice of justice and humanity, by which alone the social confederacy can be maintained, and every man reap the fruits of mutual protection and assistance.

M 5.6 This deduction of morals from self-love, or a regard to private interest, is an obvious thought, and has not arisen wholly from the wanton sallies and sportive assaults of the sceptics. To mention no others, Polybius, one of the gravest and most judicious, as well as most moral writers of antiquity, has assigned this selfish origin to all our sentiments of virtue⁷. But though the solid, practical sense of that author, and his aversion to all vain subtilties, render his authority on the present subject very considerable; yet is not this an affair to be decided by authority, and the voice of nature and experience seems plainly to oppose the selfish theory.

M 5.7 We frequently bestow praise on virtuous actions, performed in very distant ages and remote countries; where the utmost subtilty of imagination would not discover any appearance of self-interest, or find any connexion of our present happiness and security with events so widely separated from us.

M 5.8 A generous, a brave, a noble deed, performed by an adversary, commands our approbation; while in its consequences it may be acknowledged prejudicial to our particular interest.

M 5.9 Where private advantage concurs with general affection for virtue, we readily perceive and avow the mixture of these distinct sentiments, which have a very different feeling and influence on the mind. We praise, perhaps, with more alacrity, where the generous, humane action contributes to our particular interest: But the topics of praise, which we insist on, are very wide of this circumstance. And we may attempt to bring over others to our sentiments, without endeavouring to convince them, that they reap any advantage from the actions which we recommend to their approbation and applause.

M 5.10 Frame the model of a praise-worthy character, consisting of all the most amiable moral virtues: Give instances, in which these display themselves after an eminent and extraordinary manner: You readily engage the esteem and approbation of all your audience, who never so much as enquire in what age and country the person lived, who possessed these noble qualities: A circumstance, however, of all others, the most material to self-love, or a concern for our own individual happiness.

M 5.11 Once on a time, a statesman, in the shock and contest of parties, prevailed so far as to procure, by his eloquence, the banishment of an able adversary; whom he secretly followed, offering him money for his support during his exile, and soothing him with topics of consolation in his misfortunes. *Alas!* cries the banished statesman, *with what regret must I leave my friends in this city, where even enemies are so generous!* Virtue, though in an enemy, here pleased him: And we also give it the just tribute of praise and approbation; nor do we retract these sentiments, when we hear, that the action passed at Athens, about two thousand years ago, and that the persons names were Eschines and Demosthenes.

M 5.12 *What is that to me?* There are few occasions, when this question is not pertinent: And had it that universal, infallible influence supposed, it would turn into ridicule every composition, and almost every conversation, which contain any praise or censure of men and manners.

⁷Undutifulness to parents is disapproved of by mankind, προορωμενους το ελλον, και συλλογιζομενους οτι το παραπλησιον εκαστοις αυτων συγκυρησει. Ingratitude for a like reason (though he seems there to mix a more generous regard) συναγανακτουντας μεν τω πελας, αναφεροντας δ' επ' αυτους το παραπλησιον εξ ων υπογινεται τις εννοια παρεκαστω του καθηκοντος δυναμεως και θεωριας. Lib. vi. cap. 4. Perhaps the historian only meant, that our sympathy and humanity was more enlivened, by our considering the similarity of our case with that of the person suffering; which is a just sentiment.

M 5.13 It is but a weak subterfuge, when pressed by these facts and arguments, to say, that we transport ourselves, by the force of imagination, into distant ages and countries, and consider the advantage, which we should have reaped from these characters, had we been contemporaries, and had any commerce with the persons. It is not conceivable, how a *real* sentiment or passion can ever arise from a known *imaginary* interest; especially when our *real* interest is still kept in view, and is often acknowledged to be entirely distinct from the imaginary, and even sometimes opposite to it.

M 5.14 A man, brought to the brink of a precipice, cannot look down without trembling; and the sentiment of *imaginary* danger actuates him, in opposition to the opinion and belief of *real* safety. But the imagination is here assisted by the presence of a striking object; and yet prevails not, except it be also aided by novelty, and the unusual appearance of the object. Custom soon reconciles us to heights and precipices, and wears off these false and delusive terrors. The reverse is observable in the estimates, which we form of characters and manners; and the more we habituate ourselves to an accurate scrutiny of morals, the more delicate feeling do we acquire of the most minute distinctions between vice and virtue. Such frequent occasion, indeed, have we, in common life, to pronounce all kinds of moral determinations, that no object of this kind can be new or unusual to us; nor could any *false* views or prepossessions maintain their ground against an experience, so common and familiar. Experience being chiefly what forms the associations of ideas, it is impossible, that any association could establish and support itself, in direct opposition to that principle.

M 5.15 Usefulness is agreeable, and engages our approbation. This is a matter of fact, confirmed by daily observation. But, *useful*? For what? For some body's interest, surely. Whose interest then? Not our own only: For our approbation frequently extends farther. It must, therefore, be the interest of those, who are served by the character or action approved of; and these we may conclude, however remote, are not totally indifferent to us. By opening up this principle, we shall discover one great source of moral distinctions.

Part II

M 5.16 Self-love is a principle in human nature of such extensive energy, and the interest of each individual is, in general, so closely connected with that of the community, that those philosophers were excusable, who fancied, that all our concern for the public might be resolved into a concern for our own happiness and preservation. They saw every moment, instances of approbation or blame, satisfaction or displeasure towards characters and actions; they denominated the objects of these sentiments, *virtues*, or *vices*; they observed, that the former had a tendency to encrease the happiness, and the latter the misery of mankind; they asked, whether it were possible that we could have any general concern for society, or any disinterested resentment of the welfare or injury of others; they found it simpler to consider all these sentiments as modifications of self-love; and they discovered a pretence, at least, for this unity of principle, in that close union of interest, which is so observable between the public and each individual.

M 5.17 But notwithstanding this frequent confusion of interests, it is easy to attain what natural philosophers, after lord Bacon, have affected to call the *experimentum crucis*, or that experiment, which points out the right way in any doubt or ambiguity. We have found instances, in which private interest was separate from public; in which it was even contrary: And yet we observed the moral sentiment to continue, notwithstanding this disjunction of interests. And wherever these distinct interests sensibly concurred, we always found a sensible encrease of the sentiment, and a more warm affection to virtue, and detestation of vice, or what we properly call, *gratitude* and *revenge*. Compelled by these instances, we must renounce the theory, which accounts for every moral sentiment by the principle of self-love. We must adopt a more public affection, and allow, that the interests of society are not, even on their own account, entirely indifferent to us. Usefulness is only a tendency to a certain end; and it is a contradiction in terms, that any thing pleases as means to an end, where the end itself no wise affects us. If usefulness, therefore, be a source of moral sentiment, and if this usefulness be not always considered with a reference to self; it follows, that every thing, which contributes to the happiness of society, recommends itself directly to our approbation and good-will. Here is a principle, which accounts, in great part, for the origin of morality: And what need we seek for abstruse and remote systems, when there occurs one so obvious

and natural⁸?

M 5.18 Have we any difficulty to comprehend the force of humanity and benevolence? Or to conceive, that the very aspect of happiness, joy, prosperity, gives pleasure; that of pain, suffering, sorrow, communicates uneasiness? The human countenance, says Horace⁹, borrows smiles or tears from the human countenance. Reduce a person to solitude, and he loses all enjoyment, except either of the sensual or speculative kind; and that because the movements of his heart are not forwarded by correspondent movements in his fellow-creatures. The signs of sorrow and mourning, though arbitrary, affect us with melancholy; but the natural symptoms, tears and cries and groans, never fail to infuse compassion and uneasiness. And if the effects of misery touch us in so lively a manner; can we be supposed altogether insensible or indifferent towards its causes; when a malicious or treacherous character and behaviour are presented to us?

M 5.19 We enter, I shall suppose, into a convenient, warm, well-contrived apartment: We necessarily receive a pleasure from its very survey; because it presents us with the pleasing ideas of ease, satisfaction, and enjoyment. The hospitable, good-humoured, humane landlord appears. This circumstance surely must embellish the whole; nor can we easily forbear reflecting, with pleasure, on the satisfaction which results to every one from his intercourse and good-offices.

M 5.20 His whole family, by the freedom, ease, confidence, and calm enjoyment, diffused over their countenances, sufficiently express their happiness. I have a pleasing sympathy in the prospect of so much joy, and can never consider the source of it, without the most agreeable emotions.

M 5.21 He tells me, that an oppressive and powerful neighbour had attempted to dispossess him of his inheritance, and had long disturbed all his innocent and social pleasures. I feel an immediate indignation arise in me against such violence and injury.

M 5.22 But it is no wonder, he adds, that a private wrong should proceed from a man, who had enslaved provinces, depopulated cities, and made the field and scaffold stream with human blood. I am struck with horror at the prospect of so much misery, and am actuated by the strongest antipathy against its author.

M 5.23 In general, it is certain, that, wherever we go, whatever we reflect on or converse about, every thing still presents us with the view of human happiness or misery, and excites in our breast a sympathetic movement of pleasure or uneasiness. In our serious occupations, in our careless amusements, this principle still exerts its active energy.

M 5.24 A man, who enters the theatre, is immediately struck with the view of so great a multitude, participating of one common amusement; and experiences, from their very aspect, a superior sensibility or disposition of being affected with every sentiment, which he shares with his fellow-creatures.

M 5.25 He observes the actors to be animated by the appearance of a full audience, and raised to a degree of enthusiasm, which they cannot command in any solitary or calm moment.

M 5.26 Every movement of the theatre, by a skilful poet, is communicated, as it were by magic, to the spectators; who weep, tremble, resent, rejoice, and are enflamed with all the variety of passions, which actuate the several personages of the drama.

M 5.27 Where any event crosses our wishes, and interrupts the happiness of the favourite characters, we feel a sensible anxiety and concern. But where their sufferings proceed from the treachery, cruelty, or tyranny of an enemy, our breasts are affected with the liveliest resentment against the author of these calamities.

⁸It is needless to push our researches so far as to ask, why we have humanity or a fellow-feeling with others. It is sufficient, that this is experienced to be a principle in human nature. We must stop somewhere in our examination of causes; and there are, in every science, some general principles, beyond which we cannot hope to find any principle more general. No man is absolutely indifferent to the happiness and misery of others. The first has a natural tendency to give pleasure; the second, pain. This every one may find in himself. It is not probable, that these principles can be resolved into principles more simple and universal, whatever attempts may have been made to that purpose. But if it were possible, it belongs not to the present subject; and we may here safely consider these principles as original: Happy, if we can render all the consequences sufficiently plain and perspicuous!

⁹Uti ridentibus arident, ita flentibus adflent / Humani vultus. Hor.

M 5.28 It is here esteemed contrary to the rules of art to represent any thing cool and indifferent. A distant friend, or a confidant, who has no immediate interest in the catastrophe, ought, if possible, to be avoided by the poet; as communicating a like indifference to the audience, and checking the progress of the passions.

M 5.29 Few species of poetry are more entertaining than *pastoral*; and every one is sensible, that the chief source of its pleasure arises from those images of a gentle and tender tranquillity, which it represents in its personages, and of which it communicates a like sentiment to the reader. Sannazarius, who transferred the scene to the sea-shore, though he presented the most magnificent object in nature, is confessed to have erred in his choice. The idea of toil, labour, and danger, suffered by the fishermen, is painful; by an unavoidable sympathy, which attends every conception of human happiness or misery.

M 5.30 When I was twenty, says a French poet, Ovid was my favourite: Now I am forty, I declare for Horace. We enter, to be sure, more readily into sentiments, which resemble those we feel every day: But no passion, when well represented, can be entirely indifferent to us; because there is none, of which every man has not, within him, at least the seeds and first principles. It is the business of poetry to bring every affection near to us by lively imagery and representation, and make it look like truth and reality: A certain proof, that, wherever that reality is found, our minds are disposed to be strongly affected by it.

M 5.31 Any recent event or piece of news, by which the fate of states, provinces, or many individuals is affected, is extremely interesting even to those whose welfare is not immediately engaged. Such intelligence is propagated with celerity, heard with avidity, and enquired into with attention and concern. The interest of society appears, on this occasion, to be, in some degree, the interest of each individual. The imagination is sure to be affected; though the passions excited may not always be so strong and steady as to have great influence on the conduct and behaviour.

M 5.32 The perusal of a history seems a calm entertainment; but would be no entertainment at all, did not our hearts beat with correspondent movements to those which are described by the historian.

M 5.33 Thucydides and Guicciardin support with difficulty our attention; while the former describes the trivial rencounters of the small cities of Greece, and the latter the harmless wars of Pisa. The few persons interested, and the small interest fill not the imagination, and engage not the affections. The deep distress of the numerous Athenian army before Syracuse; the danger, which so nearly threatens Venice; these excite compassion; these move terror and anxiety.

M 5.34 The indifferent, uninteresting stile of Suetonius, equally with the masterly pencil of Tacitus, may convince us of the cruel depravity of Nero or Tiberius: But what a difference of sentiment! While the former coldly relates the facts; and the latter sets before our eyes the venerable figures of a Soranus and a Thræsea, intrepid in their fate, and only moved by the melting sorrows of their friends and kindred. What sympathy then touches every human heart! What indignation against the tyrant, whose causeless fear or unprovoked malice gave rise to such detestable barbarity!

M 5.35 If we bring these subjects nearer: If we remove all suspicion of fiction and deceit: What powerful concern is excited, and how much superior, in many instances, to the narrow attachments of self-love and private interest! Popular sedition, party zeal, a devoted obedience to factious leaders; these are some of the most visible, though less laudable effects of this social sympathy in human nature.

M 5.36 The frivolousness of the subject too, we may observe, is not able to detach us entirely from what carries an image of human sentiment and affection.

M 5.37 When a person stutters, and pronounces with difficulty, we even sympathize with this trivial uneasiness, and suffer for him. And it is a rule in criticism, that every combination of syllables or letters, which gives pain to the organs of speech in the recital, appears also, from a species of sympathy, harsh and disagreeable to the ear. Nay, when we run over a book with our eye, we are sensible of such unharmonious composition; because we still imagine, that a person recites it to us, and suffers from the pronunciation of these jarring sounds. So delicate is our sympathy!

M 5.38 Easy and unconstrained postures and motions are always beautiful: An air of health and vigour

is agreeable: Cloaths which warm, without burthening the body; which cover, without imprisoning the limbs, are well-fashioned. In every judgment of beauty, the feelings of the person affected enter into consideration, and communicate to the spectator similar touches of pain or pleasure¹⁰. What wonder, then, if we can pronounce no judgment concerning the character and conduct of men, without considering the tendencies of their actions, and the happiness or misery which thence arises to society? What association of ideas would ever operate, were that principle here totally unactive¹¹?

M 5.39 If any man from a cold insensibility, or narrow selfishness of temper, is unaffected with the images of human happiness or misery, he must be equally indifferent to the images of vice and virtue: As, on the other hand, it is always found, that a warm concern for the interests of our species is attended with a delicate feeling of all moral distinctions; a strong resentment of injury done to men; a lively approbation of their welfare. In this particular, though great superiority is observable of one man above another; yet none are so entirely indifferent to the interest of their fellow-creatures, as to perceive no distinctions of moral good and evil, in consequence of the different tendencies of actions and principles. How, indeed, can we suppose it possible in any one, who wears a human heart, that if there be subjected to his censure, one character or system of conduct, which is beneficial, and another, which is pernicious, to his species or community, he will not so much as give a cool preference to the former, or ascribe to it the smallest merit or regard? Let us suppose such a person ever so selfish; let private interest have ingrossed ever so much his attention; yet in instances, where that is not concerned, he must unavoidably feel *some* propensity to the good of mankind, and make it an object of choice, if every thing else be equal. Would any man, who is walking along, tread as willingly on another's gouty toes, whom he has no quarrel with, as on the hard flint and pavement? There is here surely a difference in the case. We surely take into consideration the happiness and misery of others, in weighing the several motives of action, and incline to the former, where no private regards draw us to seek our own promotion or advantage by the injury of our fellow-creatures. And if the principles of humanity are capable, in many instances, of influencing our actions, they must, at all times, have *some* authority over our sentiments, and give us a general approbation of what is useful to society, and blame of what is dangerous or pernicious. The degrees of these sentiments may be the subject of controversy; but the reality of their existence, one should think, must be admitted, in every theory or system.

M 5.40 A creature, absolutely malicious and spiteful, were there any such in nature, must be worse than indifferent to the images of vice and virtue. All his sentiments must be inverted, and directly opposite to those, which prevail in the human species. Whatever contributes to the good of mankind, as it crosses the constant bent of his wishes and desires, must produce uneasiness and disapprobation; and on the contrary, whatever is the source of disorder and misery in society, must, for the same reason, be regarded with pleasure and complacency. Timon, who, probably from his affected spleen, more than any inveterate malice, was denominated the man-hater, embraced Alcibiades, with great fondness. *Go on, my boy!* cried he, *acquire the confidence of the people: You will one day, I foresee, be the cause of great calamities to them*¹²: Could we admit the two principles of the Manicheans, it is an infallible consequence, that their sentiments of human actions, as well as of every thing else, must be totally opposite, and that every instance of justice and humanity, from its necessary tendency, must please the one deity and displease the other. All mankind so far resemble the good principle, that, where interest or revenge or envy perverts not our disposition, we are always inclined, from our natural philanthropy, to give the preference to the

¹⁰“Decentior equus cujus astricta sunt ilia; sed idem velocior. Pulcher aspectu sit athleta, cujus lacertos excitatio expressit; idem certamini paratior. Nunquam enim *species* ab *utilitate* dividitur. Sed hoc quidem discernere modici judicii est.” Quintilian, Inst. lib. viii. cap. 3.

¹¹In proportion to the station which a man possesses, according to the relations in which he is placed; we always expect from him a greater or less degree of good, and when disappointed, blame his inutility; and much more do we blame him, if any ill or prejudice arise from his conduct and behaviour. When the interests of one country interfere with those of another, we estimate the merits of a statesman by the good or ill, which results to his own country from his measures and councils, without regard to the prejudice which he brings on its enemies and rivals. His fellow-citizens are the objects, which lie nearest the eye, while we determine his character. And as nature has implanted in every one a superior affection to his own country, we never expect any regard to distant nations, where a competition arises. Not to mention, that, while every man consults the good of his own community, we are sensible, that the general interest of mankind is better promoted, than any loose indeterminate views to the good of a species, whence no beneficial action could ever result, for want of a duly limited object, on which they could exert themselves.

¹²Plutarch in vita Alc.

happiness of society, and consequently to virtue, above its opposite. Absolute, unprovoked, disinterested malice has never, perhaps, place in any human breast; or if it had, must there pervert all the sentiments of morals, as well as the feelings of humanity. If the cruelty of Nero be allowed entirely voluntary, and not rather the effect of constant fear and resentment; it is evident, that Tigellinus, preferably to Seneca or Burrhus, must have possessed his steady and uniform approbation.

M 5.41 A statesman or patriot, who serves our own country, in our own time, has always a more passionate regard paid to him, than one whose beneficial influence operated on distant ages or remote nations; where the good, resulting from his generous humanity, being less connected with us, seems more obscure, and affects us with a less lively sympathy. We may own the merit to be equally great, though our sentiments are not raised to an equal height, in both cases. The judgment here corrects the inequalities of our internal emotions and perceptions; in like manner, as it preserves us from error, in the several variations of images, presented to our external senses. The same object, at a double distance, really throws on the eye a picture of but half the bulk; yet we imagine that it appears of the same size in both situations; because we know, that, on our approach to it, its image would expand on the eye, and that the difference consists not in the object itself, but in our position with regard to it. And, indeed, without such a correction of appearances, both in internal and external sentiment, men could never think or talk steadily on any subject; while their fluctuating situations produce a continual variation on objects, and throw them into such different and contrary lights and positions¹³.

M 5.42 The more we converse with mankind, and the greater social intercourse we maintain, the more shall we be familiarized to these general preferences and distinctions, without which our conversation and discourse could scarcely be rendered intelligible to each other. Every man's interest is peculiar to himself, and the aversions and desires, which result from it, cannot be supposed to affect others in a like degree. General language, therefore, being formed for general use, must be moulded on some more general views, and must affix the epithets of praise or blame, in conformity to sentiments, which arise from the general interests of the community. And if these sentiments, in most men, be not so strong as those, which have a reference to private good; yet still they must make some distinction, even in persons the most depraved and selfish; and must attach the notion of good to a beneficent conduct, and of evil to the contrary. Sympathy, we shall allow, is much fainter than our concern for ourselves, and sympathy with persons remote from us, much fainter than that with persons near and contiguous; but for this very reason, it is necessary for us, in our calm judgments and discourse concerning the characters of men, to neglect all these differences, and render our sentiments more public and social. Besides, that we ourselves often change our situation in this particular, we every day meet with persons, who are in a situation different from us, and who could never converse with us, were we to remain constantly in that position and point of view, which is peculiar to ourselves. The intercourse of sentiments, therefore, in society and conversation, makes us form some general unalterable standard, by which we may approve or disapprove of characters and manners. And though the heart takes not part entirely with those general notions, nor regulates all its love and hatred, by the universal, abstract differences of vice and virtue, without regard to self, or the persons with whom we are more intimately connected; yet have these moral differences a considerable influence, and being sufficient, at least, for discourse, serve all our purposes in company, in the pulpit, on the theatre, and in the schools¹⁴.

¹³For a like reason, the tendencies of actions and characters, not their real accidental consequences, are alone regarded in our moral determinations or general judgments; though in our real feeling or sentiment, we cannot help paying greater regard to one whose station, joined to virtue, renders him really useful to society, than to one, who exerts the social virtues only in good intentions and benevolent affections. Separating the character from the fortune, by an easy and necessary effort of thought, we pronounce these persons alike, and give them the same general praise. The judgment corrects or endeavours to correct the appearance: But is not able entirely to prevail over sentiment.

Why is this peach-tree said to be better than that other; but because it produces more or better fruit? And would not the same praise be given it, though snails or vermin had destroyed the peaches, before they came to full maturity? In morals too, is not *the tree known by the fruit*? And cannot we easily distinguish between nature and accident, in the one case as well as in the other?

¹⁴It is wisely ordained by nature, that private connexions should commonly prevail over universal views and considerations; otherwise our affections and actions would be dissipated and lost, for want of a proper limited object. Thus a small benefit done to ourselves, or our near friends, excites more lively sentiments of love and approbation than a great benefit done to a distant commonwealth: But still we know here, as in all the senses, to correct these inequalities by reflection, and retain a general standard of vice and virtue, founded chiefly on a general usefulness.

M 5.43 Thus, in whatever light we take this subject, the merit, ascribed to the social virtues, appears still uniform, and arises chiefly from that regard, which the natural sentiment of benevolence engages us to pay to the interests of mankind and society. If we consider the principles of the human make, such as they appear to daily experience and observation, we must, *à priori*, conclude it impossible for such a creature as man to be totally indifferent to the well or ill-being of his fellow-creatures, and not readily, of himself, to pronounce, where nothing gives him any particular byass, that what promotes their happiness is good, what tends to their misery is evil, without any farther regard or consideration. Here then are the faint rudiments, at least, or out-lines, of a *general* distinction between actions; and in proportion as the humanity of the person is supposed to encrease, his connexion with those who are injured or benefited, and his lively conception of their misery or happiness; his consequent censure or approbation acquires proportionable vigour. There is no necessity, that a generous action, barely mentioned in an old history or remote gazette, should communicate any strong feelings of applause and admiration. Virtue, placed at such a distance, is like a fixed star, which, though to the eye of reason, it may appear as luminous as the sun in his meridian, is so infinitely removed, as to affect the senses, neither with light nor heat. Bring this virtue nearer, by our acquaintance or connexion with the persons, or even by an eloquent recital of the case; our hearts are immediately caught, our sympathy enlivened, and our cool approbation converted into the warmest sentiments of friendship and regard. These seem necessary and infallible consequences of the general principles of human nature, as discovered in common life and practice.

M 5.44 Again; reverse these views and reasonings: Consider the matter *à posteriori*; and weighing the consequences, enquire if the merit of social virtue be not, in a great measure, derived from the feelings of humanity, with which it affects the spectators. It appears to be matter of fact, that the circumstance of *utility*, in all subjects, is a source of praise and approbation: That it is constantly appealed to in all moral decisions concerning the merit and demerit of actions: That it is the *sole* source of that high regard paid to justice, fidelity, honour, allegiance, and chastity: That it is inseparable from all the other social virtues, humanity, generosity, charity, affability, lenity, mercy, and moderation: And, in a word, that it is a foundation of the chief part of morals, which has a reference to mankind and our fellow-creatures.

M 5.45 It appears also, that, in our general approbation of characters and manners, the useful tendency of the social virtues moves us not by any regards to self-interest, but has an influence much more universal and extensive. It appears, that a tendency to public good, and to the promoting of peace, harmony, and order in society, does always, by affecting the benevolent principles of our frame, engage us on the side of the social virtues. And it appears, as an additional confirmation, that these principles of humanity and sympathy enter so deeply into all our sentiments, and have so powerful an influence, as may enable them to excite the strongest censure and applause. The present theory is the simple result of all these inferences, each of which seems founded on uniform experience and observation.

M 5.46 Were it doubtful, whether there were any such principle in our nature as humanity or a concern for others, yet when we see, in numberless instances, that whatever has a tendency to promote the interests of society, is so highly approved of, we ought thence to learn the force of the benevolent principle; since it is impossible for any thing to please as means to an end, where the end is totally indifferent. On the other hand, were it doubtful, whether there were, implanted in our nature, any general principle of moral blame and approbation, yet when we see, in numberless instances, the influence of humanity, we ought thence to conclude, that it is impossible, but that every thing, which promotes the interest of society, must communicate pleasure, and what is pernicious give uneasiness. But when these different reflections and observations concur in establishing the same conclusion, must they not bestow an undisputed evidence upon it?

M 5.47 It is however hoped, that the progress of this argument will bring a farther confirmation of the present theory, by showing the rise of other sentiments of esteem and regard from the same or like principles.

Appendix III. Some Farther Considerations with Regard to Justice

M App3.1 The intention of this Appendix is to give some more particular explication of the origin and nature of Justice, and to mark some differences between it and the other virtues.

M App3.2 The social virtues of humanity and benevolence exert their influence immediately, by a direct tendency or instinct, which chiefly keeps in view the simple object, moving the affections, and comprehends not any scheme or system, nor the consequences resulting from the concurrence, imitation, or example of others. A parent flies to the relief of his child; transported by that natural sympathy, which actuates him, and which affords no leisure to reflect on the sentiments or conduct of the rest of mankind in like circumstances. A generous man cheerfully embraces an opportunity of serving his friend; because he then feels himself under the dominion of the beneficent affections, nor is he concerned whether any other person in the universe were ever before actuated by such noble motives, or will ever afterwards prove their influence. In all these cases, the social passions have in view a single individual object, and pursue the safety or happiness alone of the person loved and esteemed. With this they are satisfied: In this, they acquiesce. And as the good, resulting from their benign influence, is in itself compleat and entire, it also excites the moral sentiment of approbation, without any reflection on farther consequences, and without any more enlarged views of the concurrence or imitation of the other members of society. On the contrary, were the generous friend or disinterested patriot to stand alone in the practice of beneficence; this would rather inhanse his value in our eyes, and join the praise of rarity and novelty to his other more exalted merits.

M App3.3 The case is not the same with the social virtues of justice and fidelity. They are highly useful, or indeed absolutely necessary to the well-being of mankind: But the benefit, resulting from them, is not the consequence of every individual single act; but arises from the whole scheme or system, concurred in by the whole, or the greater part of the society. General peace and order are the attendants of justice or a general abstinence from the possessions of others: But a particular regard to the particular right of one individual citizen may frequently, considered in itself, be productive of pernicious consequences. The result of the individual acts is here, in many instances, directly opposite to that of the whole system of actions; and the former may be extremely hurtful, while the latter is, to the highest degree, advantageous. Riches, inherited from a parent, are, in a bad man's hand, the instrument of mischief. The right of succession may, in one instance, be hurtful. Its benefit arises only from the observance of the general rule; and it is sufficient, if compensation be thereby made for all the ills and inconveniences, which flow from particular characters and situations.

M App3.4 Cyrus, young and unexperienced, considered only the individual case before him, and reflected on a limited fitness and convenience, when he assigned the long coat to the tall boy, and the short coat to the other of smaller size. His governor instructed him better, while he pointed out more enlarged views and consequences, and informed his pupil of the general, inflexible rules, necessary to support general peace and order in society.

M App3.5 The happiness and prosperity of mankind, arising from the social virtue of benevolence and its subdivisions, may be compared to a wall, built by many hands; which still rises by each stone, that is heaped upon it, and receives encrease proportional to the diligence and care of each workman. The same happiness, raised by the social virtue of justice and its subdivisions, may be compared to the building of a vault, where each individual stone would, of itself, fall to the ground; nor is the whole fabric supported but by the mutual assistance and combination of its corresponding parts.

M App3.6 All the laws of nature, which regulate property, as well as all civil laws, are general, and regard alone some essential circumstances of the case, without taking into consideration the characters, situations, and connexions of the person concerned, or any particular consequences which may result from the determination of these laws, in any particular case which offers. They deprive, without scruple, a beneficent man of all his possessions, if acquired by mistake, without a good title; in order to bestow them on a selfish miser, who has already heaped up immense stores of superfluous riches. Public utility requires, that property should be regulated by general inflexible rules; and though such rules are adopted as best serve the same end of public utility, it is impossible for them to prevent all particular hardships, or make beneficial consequences result from every individual case. It is sufficient, if the whole plan or

scheme be necessary to the support of civil society, and if the balance of good, in the main, do thereby preponderate much above that of evil. Even the general laws of the universe, though planned by infinite wisdom, cannot exclude all evil or inconvenience, in every particular operation.

M App3.7 It has been asserted by some, that justice arises from HUMAN CONVENTIONS, and proceeds from the voluntary choice, consent, or combination of mankind. If by *convention* be here meant a *promise* (which is the most usual sense of the word) nothing can be more absurd than this position. The observance of promises is itself one of the most considerable parts of justice; and we are not surely bound to keep our word, because we have given our word to keep it. But if by convention be meant a sense of common interest; which sense each man feels in his own breast, which he remarks in his fellows, and which carries him, in concurrence with others, into a general plan or system of actions, which tends to public utility; it must be owned, that, in this sense, justice arises from human conventions. For if it be allowed (what is, indeed, evident) that the particular consequences of a particular act of justice may be hurtful to the public as well as to individuals; it follows, that every man, in embracing that virtue, must have an eye to the whole plan or system, and must expect the concurrence of his fellows in the same conduct and behaviour. Did all his views terminate in the consequences of each act of his own, his benevolence and humanity, as well as his self-love, might often prescribe to him measures of conduct very different from those, which are agreeable to the strict rules of right and justice.

M App3.8 Thus two men pull the oars of a boat by common convention, for common interest, without any promise or contract: Thus gold and silver are made the measures of exchange; thus speech and words and language are fixed, by human convention and agreement. Whatever is advantageous to two or more persons, if all perform their part; but what loses all advantage, if only one perform, can arise from no other principle. There would otherwise be no motive for any one of them to enter into that scheme of conduct¹⁵.

M App3.9 The word, *natural*, is commonly taken in so many senses, and is of so loose a signification, that it seems vain to dispute whether justice be natural or not. If self-love, if benevolence be natural to man; if reason and forethought be also natural; then may the same epithet be applied to justice, order, fidelity, property, society. Men's inclination, their necessities lead them to combine; their understanding and experience tell them, that this combination is impossible, where each governs himself by no rule, and pays no regard to the possessions of others: And from these passions and reflections conjoined, as soon as we observe like passions and reflections in others, the sentiment of justice, throughout all ages, has infallibly and certainly had place, to some degree or other, in every individual of the human species. In so sagacious an animal, what necessarily arises from the exertion of his intellectual faculties, may justly be esteemed natural¹⁶.

M App3.10 Among all civilized nations, it has been the constant endeavour to remove every thing arbitrary and partial from the decision of property, and to fix the sentence of judges by such general views and considerations, as may be equal to every member of society. For besides, that nothing could be more dangerous than to accustom the bench, even in the smallest instance, to regard private friendship or enmity; it is certain, that men, where they imagine, that there was no other reason for the preference of their adversary but personal favour, are apt to entertain the strongest ill-will against the magistrates and judges. When natural reason, therefore, points out no fixed view of public utility, by which a controversy

¹⁵This theory concerning the origin of property, and consequently of justice, is, in the main, the same with that hinted at and adopted by Grotius, "Hinc discimus, quæ fuerit causa, ob quam a primæva communione rerum primo mobilium, deinde & immobilium discessum est: nimirum quod cum non contenti homines vesci sponte natis, antra habitare, corpore aut nudo agere, aut corticibus arborum ferarumve pellibus vestito, vitæ genus exquisitius delegissent, industria opus fuit, quam singuli rebus singulis adhiberent. Quo minus autem fructus in commune conferrentur, primum obstitit locorum, in quæ homines discesserunt, distantia, deinde justitiæ & amoris defectus, per quem fiebat, ut nec in labore, nec in consumptione fructuum, quæ debebat, æqualitas servaretur. Simul discimus, quomodo res in proprietatem iverint; non animi actu solo, neque enim scire alii poterant, quid alii suum esse vellent, ut eo abstinerent, & idem velle plures poterant; sed pacto quodam aut expresso, ut per divisionem, aut tacito, ut per occupationem." De jure belli & pacis. Lib. ii. cap. 2. §2. art. 4 & 5.

¹⁶Natural may be opposed, either to what is *unusual*, *miraculous*, or *artificial*. In the two former senses, justice and property are undoubtedly natural. But as they suppose reason, forethought, design, and a social union and confederacy among men, perhaps, that epithet cannot strictly, in the last sense, be applied to them. Had men lived without society, property had never been known, and neither justice nor injustice had ever existed. But society among human creatures, had been impossible, without reason, and forethought. Inferior animals, that unite, are guided by instinct, which supplies the place of reason. But all these disputes are merely verbal.

of property can be decided, positive laws are often framed to supply its place, and direct the procedure of all courts of judicature. Where these too fail, as often happens, precedents are called for; and a former decision, though given itself without any sufficient reason, justly becomes a sufficient reason for a new decision. If direct laws and precedents be wanting, imperfect and indirect ones are brought in aid; and the controverted case is ranged under them, by analogical reasonings and comparisons, and similitudes, and correspondencies, which are often more fanciful than real. In general, it may safely be affirmed, that jurisprudence is, in this respect, different from all the sciences; and that in many of its nicer questions, there cannot properly be said to be truth or falsehood on either side. If one pleader bring the case under any former law or precedent, by a refined analogy or comparison; the opposite pleader is not at a loss to find an opposite analogy or comparison: And the preference given by the judge is often founded more on taste and imagination than on any solid argument. Public utility is the general object of all courts of judicature; and this utility too requires a stable rule in all controversies: But where several rules, nearly equal and indifferent, present themselves, it is a very slight turn of thought, which fixes the decision in favour of either party¹⁷.

M App3.11 We may just observe, before we conclude this subject, that, after the laws of justice are fixed by views of general utility, the injury, the hardship, the harm, which result to any individual from a violation of them, enter very much into consideration, and are a great source of that universal blame, which attends every wrong or iniquity. By the laws of society, this coat, this horse is mine, and *ought* to remain perpetually in my possession: I reckon on the secure enjoyment of it: By depriving me of it, you disappoint my expectations, and doubly displease me, and offend every bystander. It is a public wrong, so far as the rules of equity are violated: It is a private harm, so far as an individual is injured. And though

¹⁷That there be a separation or distinction of possessions, and that this separation be steady and constant; this is absolutely required by the interests of society, and hence the origin of justice and property. What possessions are assigned to particular persons; this is, generally speaking, pretty indifferent; and is often determined by very frivolous views and considerations. We shall mention a few particulars.

Were a society formed among several independent members, the most obvious rule, which could be agreed on, would be to annex property to *present* possession, and leave every one a right to what he at present enjoys. The relation of possession, which takes place between the person and the object, naturally draws on the relation of property.

For a like reason, occupation or first possession becomes the foundation of property.

Where a man bestows labour and industry upon any object, which before belonged to no body; as in cutting down and shaping a tree, in cultivating a field, &c. the alteration, which he produces, causes a relation between him and the object, and naturally engages us to annex it to him by the new relation of property. This cause here concurs with the public utility, which consists in the encouragement given to industry and labour.

Perhaps too, private humanity towards the possessor, concurs, in this instance, with the other motives, and engages us to leave with him what he has acquired by his sweat and labour; and what he has flattered himself in the constant enjoyment of. For though private humanity can, by no means, be the origin of justice; since the latter virtue so often contradicts the former; yet when the rule of separate and constant possession is once formed by the indispensable necessities of society, private humanity, and an aversion to the doing a hardship to another, may, in a particular instance, give rise to a particular rule of property.

I am much inclined to think, that the right of succession or inheritance much depends on those connexions of the imagination, and that the relation to a former proprietor begetting a relation to the object, is the cause why the property is transferred to a man after the death of his kinsman. It is true; industry is more encouraged by the transference of possession to children or near relations: But this consideration will only have place in a cultivated society; whereas the right of succession is regarded even among the greatest Barbarians.

Acquisition of property by *accession* can be explained no way but by having recourse to the relations and connexions of the imagination.

The property of rivers, by the laws of most nations, and by the natural turn of our thought, is attributed to the proprietors of their banks, excepting such vast rivers as the Rhine or the Danube, which seem too large to follow as an accession to the property of the neighbouring fields. Yet even these rivers are considered as the property of that nation, through whose dominions they run; the idea of a nation being of a suitable bulk to correspond with them, and bear them such a relation in the fancy.

The accessions, which are made to land, bordering upon rivers, follow the land, say the civilians, provided it be made by what they call *alluvion*, that is; insensibly and imperceptibly; which are circumstances, that assist the imagination in the conjunction.

Where there is any considerable portion torn at once from one bank and added to another, it becomes not *his* property, whose land it falls on, till it unite with the land, and till the trees and plants have spread their roots into both. Before that, the thought does not sufficiently join them.

In short, we must ever distinguish between the necessity of a separation and constancy in men's possession, and the rules, which assign particular objects to particular persons. The first necessity is obvious, strong, and invincible: The latter may depend on a public utility more light and frivolous, on the sentiment of private humanity and aversion to private hardship, on positive laws, on precedents, analogies, and very fine connexions and turns of the imagination.

the second consideration could have no place, were not the former previously established: For otherwise the distinction of *mine* and *thine* would be unknown in society: Yet there is no question, but the regard to general good is much enforced by the respect to particular. What injures the community, without hurting any individual, is often more lightly thought of. But where the greatest public wrong is also conjoined with a considerable private one, no wonder the highest disapprobation attends so iniquitous a behaviour.

Coda: Two Neighbours and a Meadow

From *A Treatise of Human Nature*, Book III, Part II, Section VII, “Of the origin of government” (optional reading).

T 3.2.7.8 By means of these two advantages, in the *execution* and *decision* of justice, men acquire a security against each others weakness and passion, as well as against their own, and under the shelter of their governors, begin to taste at ease the sweets of society and mutual assistance. But government extends farther its beneficial influence; and not contented to protect men in those conventions they make for their mutual interest, it often obliges them to make such conventions, and forces them to seek their own advantage, by a concurrence in some common end or purpose. There is no quality in human nature, which causes more fatal errors in our conduct, than that which leads us to prefer whatever is present to the distant and remote, and makes us desire objects more according to their situation than their intrinsic value. Two neighbours may agree to drain a meadow, which they possess in common; because ‘tis easy for them to know each others mind; and each must perceive, that the immediate consequence of his failing in his part, is, the abandoning the whole project. But ’tis very difficult, and indeed impossible, that a thousand persons shou’d agree in any such action; it being difficult for them to concert so complicated a design, and still more difficult for them to execute it; while each seeks a pretext to free himself of the trouble and expence, and wou’d lay the whole burden on others. Political society easily remedies both these inconveniences. Magistrates find an immediate interest in the interest of any considerable part of their subjects. They need consult no body but themselves to form any scheme for the promoting of that interest. And as the failure of any one piece in the execution is connected, tho’ not immediately, with the failure of the whole, they prevent that failure, because they find no interest in it, either immediate or remote. Thus bridges are built; harbours open’d; ramparts rais’d; canals form’d; fleets equip’d; and armies disciplin’d; every where, by the care of government, which, tho’ compos’d of men subject to all human infirmities, becomes, by one of the finest and most subtle inventions imaginable, a composition, that is, in some measure, exempted from all these infirmities.